

STATE OF NEW YORK SUPREME COURT:
COUNTY OF NEW YORK

-----X

IAN REISNER,

Index No.:

Plaintiff,

-against-

MAUREEN LUPO,

Defendant.

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MEMORANDUM OF LAW IN SUPPORT OF PLAINTIFF'S ORDER TO SHOW

CAUSE

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PRELIMINARY STATEMENT

Plaintiff Ian Reisner, as master leaseholder of the property located at 510W 42nd Street, New York, New York (the “Property”), seeks declarative relief that the purported lease agreement provided by Defendant Maureen Lupo is fraudulent, as well as immediate injunctive relief. Defendant’s conduct—including unauthorized occupation, use of a forged lease document, and financial misconduct—has resulted in financial harm, reputational damage, and public safety risks. Plaintiff further seeks relief for conversion, trespass, unjust enrichment, fraud, and negligence, all of which are detailed in the Verified Complaint and supporting affidavits.

This memorandum of law is submitted in support of Plaintiff’s Order to Show Cause (“OTSC”) pursuant to CPLR 6301 and 6311.

STATEMENT OF FACTS

- I. Plaintiff attempted lease negotiations with Defendant, but no valid lease was ever finalized.

Plaintiff Ian Reisner is the master leaseholder of the Property and has held this position since March 2024 (Reisner Aff. ¶ 1). Between June and December 2024, Defendant Maureen Lupo engaged in a series of unauthorized and dangerous activities at the Property. Defendant initiated discussions to lease the event space at the Property in June 2024. Several drafts leases were circulated between the parties, but Defendant ultimately failed to provide required documentation, such as proof of insurance and security deposits. (Reisner Aff. ¶¶ 4-8; Brown Aff. ¶ 14).

Despite these failures, Defendant presented a forged lease agreement to law enforcement officers on November 11, 2024, falsely asserting legal rights to the Property (Reisner Aff. ¶¶ 19-

21), while remaining on the Property and hosting activities without Plaintiff's authorization. (*Id.*, at ¶¶ 7-10).

II. Defendant's unauthorized incidents at the Property created serious risks to its safety and operation.

Defendant hosted several unauthorized events at the Property, including a Halloween party on October 31, 2024 (Reisner Aff. ¶ 11); an event on November 8, 2024 that caused noise complaints from neighbors and led to police intervention due to excessive disturbances (Reisner Aff. ¶¶ 12-13; Brown Aff. ¶¶ 5-8); and most egregiously, an event that transpired during the weekend of December 7 to 9, 2024, that resulted in a violent altercation involving a shooting that caused serious injury to an attendee to the event. (Reisner Aff. ¶¶ 16-17; Ruggiero Aff. ¶ 5).

On November 8, 2024, Defendant held a "Halloween Party" at the Property in direct contravention of Plaintiff, which resulted in significant disruptions to the neighborhood and required police intervention. Neighbors lodged numerous noise complaints due to excessively loud music and unruly attendees, disturbing the surrounding community and disrupting normal operations at the Property (Brown Aff. ¶¶ 8-9; Reisner Aff. ¶ 15).

The event created an unsafe environment, as overcrowding and inadequate security measures contributed to the chaos, forcing the general manager to call in law enforcement to address the disturbances as a result of the event that Defendant organized without Plaintiff's authorization (Brown Aff. ¶ 9). The general manager also reported that hotel guests at the Property requested refunds after this incident. (Reisner Aff. ¶ 14).

The most serious incident occurred in the morning of December 9, 2024, during another unauthorized event organized by Defendant. A violent altercation broke out, culminating in a shooting that endangered public safety and caused significant reputational harm to the Property

(Reisner Aff. ¶¶ 16-17). The incident involved a dice game in the nightclub's back room, organized by Defendant's associate, where a firearm was brought into the venue due to Defendant's negligence in maintaining proper security protocols. (Reisner Aff. ¶¶ 17-18; Ruggiero Aff. ¶¶ 11-12).

As a direct consequence of Defendant's failure to adhere to safety measures, the victim of the shooting suffered a serious head injury (Ruggiero Aff. ¶ 12; Reisner Aff. ¶¶ 22-23).

III. Defendant removed security equipment, allowed gambling, and contributed to dangerous conditions within the Property.

After the December 9, 2024 incident, Michael Ruggiero, the President and Chief Operating Officer of Beau Dietl & Associates, corroborated these events through an investigation conducted by his chief investigator at the scene. The investigation revealed numerous security lapses at the Property.

It was discovered that Defendant removed security cameras previously installed at the venue and installed her own cameras, which she later removed, hindering evidence collection and law enforcement's ability to address the incident effectively (Ruggiero Aff. ¶¶ 7-10). The Chief Engineer of the Property also confirmed that Defendant controlled certain spaces, including a private office, where she removed a door camera to evade surveillance (Ruggiero Aff. ¶ 10). Witness statements also confirmed that the event included unregulated gambling activities, which escalated tensions and contributed to the violence (Ruggiero Aff. ¶ 11).

IV. Defendant Presented a Forged Term Sheet to Mislead Law Enforcement and Regain Access to the Property.

Defendant also attempted to deceive law enforcement officer by presenting a falsified "term sheet" as though it were a valid lease. (Reisner Aff. ¶¶ 23-26). In October 2024, following

several unauthorized incidents, Plaintiff's team decided to change the locks at the Property to prevent further misconduct by Defendant. On November 6, 2024, Plaintiff's co-investor, Richard Lemmerman, arranged for the locks to be changed.

On November 11, 2024, after being locked out due to a change of locks at the Property, Defendant presented a fabricated term sheet bearing Plaintiff's signature to the police. Defendant falsely claimed this document was a valid lease to justify her continued access. Plaintiff confirmed the signature as a forgery and explained this to law enforcement (Reisner Aff. ¶¶ 24-26).

Defendant used this forged document to mislead law enforcement and reassert her unauthorized presence at the Property. Despite Plaintiff's efforts to explain the forgery to the NYPD, officers instructed Plaintiff's team to give the keys to Defendant. (Reisner Aff. ¶¶ 26-27).

V. Defendant's Financial Misconduct and Interference with Plaintiff's Business Negotiations Exacerbated the Harm to the Property.

Defendant engaged in significant financial misconduct by using personal point-of-sale terminals to bypass financial oversight and evade sales tax payments, redirecting approximately \$1,698,000 in revenue away from Plaintiff since September 2024 (Reisner Aff. ¶ 29).

In addition to financial improprieties, Defendant consistently ignored regulatory requirements and failed to obtain necessary licenses and permits for her events (Brown Aff. ¶ 9). These violations resulted in police intervention, noise complaints, and backlash from the local community (Reisner Aff. ¶ 15). Complaints from neighboring businesses and residents specifically cited excessive noise, safety hazards, and regulatory violations tied to Defendant's

events, which caused extensive reputational damage to Plaintiff and the Property. (Brown Aff. ¶¶ 19-20).

Defendant has also interfered with Plaintiff's ongoing negotiations with Richard Born, the master landlord of the Property, regarding the extension of Plaintiff's lease and a potential purchase of the Property (Reisner Aff. ¶¶ 31-32). Defendant threatened, through text messages and phone calls, to contact Mr. Born and make disparaging statements about Plaintiff to secure a deal for herself and her associates from the TAO Group. (See *id.*).

These actions disrupted Plaintiff's negotiations and further harmed his ability to maintain and advance his business interests.

ARGUMENTS

I. Declaratory Relief Is Necessary to Resolve the Dispute Regarding the Term Sheet/Lease.

Pursuant to CPLR 3001, "[t]he [S]upreme [C]ourt [of New York] may render a declaratory judgment as to the rights and other legal relations of the parties to a justiciable controversy." A justiciable controversy exists when the plaintiff asserts rights actually challenged by the defendant, involving substantial legal interests where a declaration will have practical effect. *Chanos v. MADAC, LLC*, 74 A.D.3d 1007, 1008 [2d Dep't. 2010] (citing *De Veau v. Braisted*, 5 A.D.2d 603, 174 N.Y.S.2d 596 [2d Dep't 1958], *aff'd*, 5 N.Y.2d 236 [1959]).

Moreover, where a signature on a contract (or lease) is forged, and no evidence is presented that the forger was authorized to execute the contract on a party's behalf, the contract or lease is void ab initio. (*Kwang Hee Lee, v. ADJMI 936 Realty Assoc.*, 46 A.D. 3d 629, 631 [2d Dep't. 2007]; *Orlofsky v. Empire Sec. Sys.*, 230 A.D. 2d 401, 403 [2d Dep't. 1997]). *Rufrano v. Yovino*, 2018 NYLJ LEXIS 3024, *24.

Here, Defendant falsely claimed to hold legitimate lease rights by presenting a forged “Term Sheet for Lease Agreement” to law enforcement on November 11, 2024, after being locked out of the Property following numerous unauthorized events causing grave harms to the Property. The purported term sheet, which Defendant claims to be a “lease,” bears Plaintiff’s forged signature—a signature Plaintiff does not recognize and never authorized (Reisner Aff. ¶¶ 24-26). As a result, the purported lease is void from its inception, rendering Defendant’s claims of legal rights to the Property under it entirely baseless.

Unfortunately, the forged document misled the NYPD officers, who subsequently instructed Plaintiff to give Defendant access to the Property and seek judicial clarification before removing Defendant from the Property.

This interference prevented Plaintiff from enforcing his rights as master leaseholder, allowing Defendant—who never acquired a valid lease—to retain unauthorized possession and cause ongoing financial and reputational harm. As evidenced in the exchanges, Plaintiff’s communications with Defendant further demonstrate that no valid lease was ever finalized, as Defendant failed to provide the required documentation, including proof of insurance and security deposits (Reisner Aff. ¶¶ 4-8). Despite these failures, Defendant asserted rights over the Property, hosting events that jeopardized public safety and inflicted substantial harm on Plaintiff’s business and reputation.

In light of the foregoing, declaratory relief should be deemed the appropriate remedy to resolve this dispute by conclusively establishing the invalidity of the forged lease document and confirming that Defendant holds no lawful rights to the Property.

II. Injunctive Relief Is Necessary to Prevent Irreparable Harm and Protect Plaintiff’s Rights Over the Property.

To obtain a preliminary injunction, Plaintiff must demonstrate (1) the likelihood of success on the merits of the underlying cause of action; (2) irreparable injury in the absence of the preliminary injunction; and (3) a balancing of the equities in plaintiff's favor. *Schindler v Niche Media Holdings, LLC*, 1 Misc 3d 713, 716 [Sup Ct, NY County 2003]. Irreparable harm refers to injuries that cannot be adequately compensated by monetary damages, such as reputational harm, public safety risks, or lost business opportunities. *DiFabio v. Omnipoint Commc'ns, Inc.*, 66 A.D.3d 635, 636-637 [2d Dep't 2009]. And the irreparable injury to be sustained is more burdensome [to the plaintiff] than the harm caused to defendant through imposition of the injunction. *Cangemi v Yeager*, 185 AD3d 1397, 1400 [4th Dep't 2020].

Moreover, proof establishing these elements must be by affidavit and other competent proof, with evidentiary detail. *Scotto v Mei*, 219 AD2d 181, 182 [1st Dep't 1996]; *Faberge Intl. v Di Pino*, 109 AD2d 235, 240 [1st Dep't 1985].

A. Plaintiff Is Likely to Succeed on the Merits.

To demonstrate a likelihood of success on the merits, it is sufficient for the moving party to make a prima facie showing of his or her right to relief. *Cangemi*, 185 AD3d at 1398.

As shown herein, Plaintiff has presented substantial evidence supporting the claims asserted. Defendant's actions, ranging from forging a lease document to unlawfully occupying the Property and causing financial and reputational harm, align with well-established legal standards for the alleged liability. The documented facts strongly indicate that Plaintiff is likely to prevail on the merits of these claims.

i. Defendant's Unlawful Presence on the Property Constitutes Trespass.

Under New York law, trespass entails an intentional entry onto the land of another without justification or permission, (*Carlson v. Zimmerman*, 63 A.D.3d 772, 773 [2d Dep't.

2009]; see also *Woodhull v. Town of Riverhead*, 46 A.D.3d 802, 804 [2d Dep't. 2007]), or a refusal to leave after permission has been granted but later withdrawn (*Rager v. McCloskey*, 305 N.Y. 75, 79 [1953]; *Navarro v. Federal Paper Bd. Co.*, 185 A.D.2d 590, 592 [3d Dep't. 1992]). Intent is defined as intending the act that produces the unlawful intrusion, where the intrusion is an immediate or inevitable consequence of that act (*Phillips v. Sun Oil Co.*, 307 N.Y. 328, 331 [1954]). Liability may attach regardless of the defendant's mistaken belief that they had a right to enter (*State of New York v. Johnson*, 45 A.D.3d 1016, 1019 [3d Dep't. 2007]; *Curwin v. Verizon Communications [LEC]*, 35 A.D.3d 645, 827 N.Y.S.2d 256 [2d Dep't. 2006]).

Plaintiff, as master leaseholder of the Property at 510 West 42nd Street, has an indisputable legal right to possess the premises (Reisner Aff. ¶ 1). Defendant initially sought permission to lease the Property but failed to meet the conditions necessary to finalize an agreement, such as providing proof of insurance and a security deposit (Reisner Aff. ¶¶ 4-8). Despite this, Defendant intentionally entered the Property without Plaintiff's authorization and organized unauthorized events, including those on October 31 and November 8, 2024, which disrupted operations and violated safety protocols (Reisner Aff. ¶¶ 12-15).

After Plaintiff lawfully withdrew any implied permission by locking Defendant out due to her unauthorized and unsafe activities, Defendant continued to intrude by presenting a forged lease document to law enforcement to regain access (Reisner Aff. ¶¶ 24-26). Defendant's actions—remaining on the Property after permission was revoked and claiming rights based on a forged document—constitute intentional and unjustified intrusions on Plaintiff's possessory rights.

As such, Defendant's conduct satisfies the elements required for a claim of trespass under New York law. Defendant's mistaken belief, if any, regarding her right to enter or remain is irrelevant, as liability for trespass attaches regardless of such belief. *Johnson*, 45 A.D.3d at 1019.

ii. Defendant's Financial Gain at Plaintiff's Expense Warrants a Finding of Unjust Enrichment.

To succeed on a claim for unjust enrichment, a plaintiff must demonstrate: (1) the defendant was enriched, (2) the enrichment was at the plaintiff's expense, and (3) it is against equity and good conscience to permit the defendant to retain the benefit. *Mandarin Trading Ltd. v. Wildenstein*, 16 N.Y.3d 173, 182 [2011]; *Paramount Film Distrib. Corp. v. State of New York*, 30 N.Y.2d 415, 421 [1972]. The inquiry focuses on whether, under the circumstances, it would be inequitable for the defendant to retain the benefit without compensating the plaintiff. *Citibank, N.A. v. Walker*, 12 A.D.3d 480, 481 [2d Dept 2004]; *Baron v. Pfizer, Inc.*, 42 A.D.3d 627, 629-30 [3d Dept 2007].

Here, Defendant was enriched by generating approximately \$1,698,000 in revenue from unauthorized events hosted at the Property (Reisner Aff. ¶ 30). These events were conducted without Plaintiff's consent or compensation and directly exploited Plaintiff's Property, depriving him of lawful financial benefits and causing reputational harm (Brown Aff. ¶¶ 19-20; Reisner Aff. ¶ 29).

The enrichment was at Plaintiff's expense, as Defendant used the Property to generate revenue while failing to meet the conditions required to secure a legitimate lease agreement, such as providing proof of insurance and security deposits (Reisner Aff. ¶¶ 4-8). Plaintiff also incurred significant costs due to disturbances caused by Defendant's events, including refunds to

hotel guests and safety violations requiring law enforcement intervention (Reisner Aff. ¶¶ 12-15; Brown Aff. ¶¶ 5-8).

Thus, it is against equity and good conscience to allow Defendant to retain the revenue derived from her unauthorized use of the Property, particularly given her fraudulent actions, safety violations, and disregard for Plaintiff's legal rights. Under these circumstances, restitution is warranted to prevent Defendant from unjustly benefiting at Plaintiff's expense.

iii. The Forged Term Sheet Is Void Ab Initio and Cannot Confer Any Legal Rights.

As indicated *supra*, where a signature on a contract or lease is forged, and no evidence is presented that the forger was authorized to execute the document on a party's behalf, the contract or lease is void ab initio and confers no enforceable rights. *Kwang Hee Lee*, 46 A.D.3d at 631; *Orlofsky*, 230 A.D.2d at 403; *Rufrano*, 2018 NYLJ LEXIS 3024, at *24. This principle applies broadly to void instruments that are executed without authorization, invalidating their legal effect and any purported rights arising from their use.

In this case, Defendant presented a forged "term sheet" purporting as a lease bearing Plaintiff's falsified signature, to law enforcement in an attempt to maintain unauthorized possession of the Property (Reisner Aff. ¶¶ 24-26). Plaintiff has unequivocally denied executing or authorizing the execution of this document, and Defendant has provided no evidence to the contrary (Reisner Aff. ¶ 25). Thus, the forged term sheet should be deemed void ab initio and incapable of conferring any enforceable rights. Defendant's reliance on this document to justify her occupation of the Property was legally baseless and caused significant harm to Plaintiff, including interference with his possessory rights, reputational damage, and financial losses arising from Defendant's unauthorized activities on the Property (Reisner Aff. ¶¶ 12-18, 24-29).

By means of the foregoing, Defendant's use of the forged term sheet demonstrates clear intent to defraud both Plaintiff and law enforcement, further exacerbating the harm caused by her unlawful occupation. These actions duly support Plaintiff's claim for equitable relief and damages arising from Defendant's fraudulent conduct.

iv. Defendant's Negligence Has Caused Direct and Reputational Harm.

To establish a prima facie case of negligence, a plaintiff must demonstrate: (1) a duty owed by the defendant to the plaintiff, (2) a breach of that duty, and (3) injury proximately resulting from the breach. *Wesco Ins. Co. v. Moncrieffe*, 2023 NYLJ LEXIS 2864, *3. The plaintiff must also show that the defendant's negligence was a substantial cause of the events leading to the injury. *Id.*, citing *Nallan v. Helmsley-Spear, Inc.*, 50 N.Y.2d 507 [1980].

In the instant case, Defendant owed Plaintiff a duty of care as a reasonable individual occupying and utilizing the Property. This duty required Defendant to act responsibly, avoid creating hazardous conditions, and comply with legal requirements related to her intended use of the premises. By occupying the Property, Defendant was obligated to prevent harm to Plaintiff's interests, reputation, and operations (Reisner Aff. ¶¶ 4-8).

Defendant breached this duty through unauthorized conduct. Despite failing to finalize a lease agreement due to her failure to provide proof of insurance and security deposits, Defendant occupied the Property and hosted unauthorized events. Events on October 31, 2024, and November 8, 2024, disrupted operations and caused safety violations, including noise complaints and police intervention, harming Plaintiff's reputation (Reisner Aff. ¶¶ 12-15). Worse yet, during the December 9, 2024 event, a violent altercation occurred due to inadequate security, resulting in gun-shot injury to an attendee (Reisner Aff. ¶¶ 16-18).

As a result of Defendant's breaches, Plaintiff incurred harm, including damage to the Property, financial losses from refunds to guests, operational disruptions, and lost rental income (Reisner Aff. ¶¶ 12-15, 29). Plaintiff also suffered reputational harm due to police involvement, safety violations, and public complaints, which undermined future business opportunities (Reisner Aff. ¶¶ 16-18).

As shown in the foregoing, Defendant's negligence was a substantial cause of these injuries. Her failure to exercise reasonable care foreseeably led to the damages Plaintiff sustained. These facts suffice a prima facie case of negligence under New York law.

v. Defendant's Tortious Interference Damaged Plaintiff's Business Interests.

A plaintiff alleging tortious interference with prospective business relations must show that: (1) business relations with a third party, (2) the defendant's interference with those business relations, (3) that the defendant acted for the sole purpose of harming the plaintiff or used wrongful means, and (4) injury to the business relationship. *Thome v. Alexander & Louis Calder Found.*, 70 A.D.3d 88, 108 [1st Dep't 2009]; *Valkyrie AI LLC v. PriceWaterhouseCoopers LLP*, A.D.3d, 2024 NY Slip Op 06141, *2 [2024]). A defendant's conduct must be motivated solely by malice or involve unlawful means going beyond mere self-interest or economic considerations. *Shared Communications Servs. of ESR, Inc. v. Goldman Sachs & Co.*, 23 A.D.3d 162, 163 [1st Dep't 2005].

As indicated *supra*, Plaintiff had an existing economic relationship with Richard Born, the master landlord of the Property, involving active negotiations for the extension of Plaintiff's lease and a potential purchase agreement for the Property (Reisner Aff. ¶ 31). Defendant was

fully aware of this relationship and intentionally acted to disrupt it by threatening to contact Mr. Born and make disparaging remarks about Plaintiff (Reisner Aff. ¶ 32).

Defendant's actions were designed to undermine Plaintiff's credibility and interfere with his negotiations with Mr. Born, with the aim of securing a direct deal for herself and her associates from the TAO Group (Reisner Aff. ¶ 32). These threats constituted intentional and malicious acts, aimed solely at harming Plaintiff's relationship with the master landlord and advancing Defendant's own interests.

As a result of Defendant's interference, Plaintiff's business relationship with Mr. Born was disrupted, impairing Plaintiff's ability to negotiate favorable lease terms and pursue the purchase of the Property. This interference caused actual economic harm to Plaintiff, including reputational damage and the loss of potential business opportunities arising from the negotiations (Reisner Aff. ¶¶ 31-32).

Based on the foregoing, Defendant deliberately interfered with Plaintiff's economic relationship with Mr. Born, causing substantial harm to Plaintiff's business interests. Defendant's intentional and wrongful actions provide a basis for a claim of tortious interference with prospective business relations.

B. Plaintiff Will Suffer Irreparable Harm Absent Injunctive Relief.

Irreparable harm refers to injuries that cannot be adequately compensated by monetary damages, such as reputational harm, public safety risks, or lost business opportunities. *DiFabio*, 66 A.D.3d at 636-637.

As indicated *supra*, Plaintiff faces irreparable harm absent injunctive relief, including reputational damage from Defendant's unauthorized and unsafe events, such as the December 9, 2024 incident, which caused serious bodily injury to an attendee (Reisner Aff. ¶¶ 16-18).

Defendant's continued occupation of the Property also disrupts Plaintiff's ability to secure new tenants and undermines ongoing business opportunities, losses that cannot be adequately compensated through monetary damages (Reisner Aff. ¶¶ 29, 31-32). These harms warrant immediate injunctive relief to protect Plaintiff's interests.

C. The Balance of Equities Favors Plaintiff.

The balance of equities favors the plaintiff when the irreparable injury they would sustain without an injunction outweighs the harm the defendant would experience from the imposition of the injunction. *Cangemi*, 185 AD3d at 1400.

In the instant case, absent an injunction, Plaintiff will continue to suffer irreparable harm, including reputational damage, financial losses, and disruption of business opportunities due to Defendant's unauthorized occupation and unsafe events (Reisner Aff. ¶¶ 16-18, 29, 31-32). In contrast, the imposition of an injunction will cause no lawful harm to Defendant, as she has no legitimate rights to the Property or its use. This disparity supports granting injunctive relief to protect Plaintiff's interests.

D. Plaintiff Has Provided Competent Evidentiary Proof Sufficient to Establish the Elements of the Claims Asserted.

Plaintiff has submitted affirmations and supporting documentation that provide detailed evidentiary proof of Defendant's actions and their consequences. Specifically, the Reisner Affidavit outlines Defendant's unauthorized entry, failure to provide required lease documentation, and presentation of a forged lease to law enforcement (Reisner Aff. ¶¶ 4-8, 24-26). Additional affirmations from Brown and Ruggiero corroborate these facts, detailing the unauthorized events, public safety hazards, and reputational damage caused by Defendant (Brown Aff. ¶¶ 5-8; Ruggiero Aff. ¶¶ 5-6).

Moreover, the affirmations are supported by exhibits that provide additional documentary evidence of Defendant's misconduct, including communications, event records, and investigation reports, satisfying the requirement for competent proof regarding injunctive relief. *Scotto v. Mei*, 219 A.D.2d at 182; *Faberge Intl.*, 109 A.D.2d at 240.

CONCLUSION

For the reasons set forth above, Plaintiff respectfully requests that the Court grant the relief sought in the Order to Show Cause, including declaratory relief establishing that the purported lease is fraudulent, injunctive relief to protect Plaintiff's rights and prevent further irreparable harm, and such other and further relief as the Court deems just, equitable, and necessary under the circumstances.

Dated: January 12, 2025
New York, New York

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WORD COUNT CERTIFICATION

Robert J. Hantman certifies that the number of words in this Memorandum of Law is 3,900 and complies with the 7,000 word count limit in 22 NYCRR 202.8-b. I am relying on the word count feature in our Microsoft Word word-processing system used to prepare the document.

Dated: January 13, 2025
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